



The Mental Gain - Informed Consent (Minor)

This document serves to outline the guidelines for mental performance conditioning with The Mental Gain. This is a legal document that serves as an agreement to all rules and expectations. Both the client, and parent must read, agree, and sign the document in order to begin services with The Mental Gain. They will uphold all rules and expectations throughout the entire duration of service delivery, and until full payment is completed.

Services

- 1) The Mental Gain provides mental performance consulting that strives to teach clients mental skills, and be a healthy resource for clients. This will be accomplished through 50-minute, 1-on-1 sessions with the client and consultant. The consultant will have a plan before all meetings. The client is expected to attend all meetings in a quiet area, at a desk, with a notebook, and with no other distractions (phones, people, TV, etc). In order for growth and learning to occur, clients must be willing to challenge their thinking, be present, and put effort towards the content the consultant is teaching.
- 2) The Mental Gain offers consulting services specific to sport mental performance. The Mental Gain **does not** offer services for mental health, therapy, counseling, etc. While mental health topics may arise in conversation, they will not be something directly worked on. In addition, some sport mental skills can be applied to life, mental health, etc, however, this is not the focus or intention of The Mental Gain's services.
- 3) The Mental Gain's consultants are committed to helping athletes learn mental skills, achieve client goals, and serve as a healthy resource to the client. However, much of this is dependent on the presenting issue, commitment, motivation, age, severity, etc. Therefore, The Mental Gain does not guarantee results, or have a guaranteed timeline for progress. Every client is different and requires an individualized plan created by the consultant. This plan is subject to change at any time based on the prioritization of presenting problems, goals, and mental skills.

Telecommunication

- a) Virtual services will be held through Zoom. The consultant will send a Zoom link to the parents/guardians beforehand. For virtual services, clients are expected to be sitting at a desk, on a computer, in a quiet room, with no distractions (phone, TV, other people, etc).
- b) Occasionally, a client will need to meet on the go (in the car, before practice/game). Only in these instances is it permissible for clients to attend a session on their phone, and in a different environment. In this instance, the parents/guardians are required to notify the consultant at least 12 hours in advance, so the consultant can adjust session content and plans if necessary.

Billing

1. The Mental Gain accepts Zelle, check, cash, and Venmo (if using Venmo, The Mental Gain requires an additional \$2 processing fee **per session**). Please let your consultant know what form of payment you would like to use, and they will send you the appropriate information.
2. Payment must be made **before** the start of each session. **If payment is made anytime after a session has started, a \$10 late fee will be applied.**
 - a. **When making a payment, you must include your child's name, and the date of the session/s that you are paying for in the memo box.** For example, "Client Name, 1/1/23".
3. There is no minimum number of sessions. Clients will pay before each session, and can terminate services at any time. The parents/guardians have the choice to pay for one session at a time, or for several at once.
4. Sport mental performance is currently not accepted by any insurance. Therefore, the parents/guardians are responsible for the entirety of all payments.
5. Clients or parents/guardians must reschedule sessions at least 48 hours in advance. If a session is rescheduled with less than 48 hours notice, the following fees will apply:
 - **First occurrence:** no fee
 - **Second occurrence:** \$20 fee
 - **Third occurrence:** \$40 fee
 - **Fourth and subsequent occurrences:** \$60 fee

Please note, last-minute rescheduling disrupts the weekly schedule and strongly affects the company's ability to allocate time to other clients who are waiting for a

session opening. Many companies charge the full session fee for last-minute rescheduling; our rescheduling fees are comparatively minor and considerate.

6. A client is given a 15-minute grace period to be late to a session. Due to scheduling, the consultant is not required to stay after the original 50-minute time frame to make up for late arrivals.
7. If a client fails to attend a scheduled session without prior notice, the consultant will wait for 15 minutes into the session before the session is automatically canceled. Once automatically canceled, a \$30 fee will automatically be applied. Please note that this is considered a no-show (not a reschedule), and the \$30 will therefore apply on the first occurrence.
 - On the second occurrence of a no-show, a \$60 fee will be applied, and continuation of services will be discussed.
8. **Refund Policy** - The only time a refund will be issued is: if parents/guardians pay for multiple sessions ahead of time, and later decides to terminate services before those sessions have occurred. Outside of this instance, no other refunds will be issued.

Documentation

1. Consultants will have a written plan for each session. Depending on the state of the athlete, point in the season, or other factors, the consultant session plan is subject to change. In addition, athletes are encouraged to be curious, and reflect throughout their mental skills work. **Therefore, it is highly encouraged that the athlete has at least 1 idea per session to share with the consultant. This can be a question, accomplishment, update, topic, or anything they believe to be relevant.** This will contribute to faster mental growth, and achieving long-term results.
2. Consultants will take relevant notes throughout the session.
3. On occasion, the consultant may ask to record a session. This will be used to review mental skills content and for consultant improvement. It also allows for a more efficient session, with fewer pauses for note-taking. The consultant is required to delete recordings within 1 month of the recorded date.
 - a. The consultant will always get permission from the client for each session they want to record. The client and/or parents/guardians reserve the right to decline this request, and may request to stop recording at any time.

4. All notes, session plans, and recordings are confidential and stored electronically with appropriate security and privacy measures. No one, including parents/guardians, is allowed access to the consultant's notes. However, parents/guardians are welcome to request verbal updates from the consultant regarding session content and general themes their child has shared.

Confidentiality

1. Confidentiality is the legal promise to keep information private. All clients are given confidentiality; therefore, no information will be shared with any party outside of the client, consultant, and parents/guardians.
 - a. Information about a client's **case** is allowed to be shared with other mental performance consultants, only if the client's identity remains completely anonymous.
 - b. The client and consultant's working relationship will not be released to any party, unless allowed by the parents/guardians.
 - i. However, when meeting in-person, there is a risk for other parties to view the working relationship, and therefore assume services are being given. This is not a break in confidentiality and is a risk that the client, and parents/guardians assume.
 - c. The Mental Gain is permitted to release any notes, recordings, or session plans under a court-mandated order.
2. When working with clients under the age of 18, parents/guardians have the right to access all information regarding their child. However, they do not have direct access to the consultant's personal notes.
 - a. Consultants will occasionally invite parents/guardians to attend a session for an update on the child's progress. However, if parents/guardians request an update sooner, they must provide at least 48 hours notice to the consultant.
 - b. Outside of sessions, parents/guardians may inquire about their child's progress. However, if a phone call or text exchange exceeds 15 minutes, it will be considered "session time," and a \$20 fee will apply.
 - c. While the consultant is permitted to share all relevant information about the client with the parents/guardians, they may only provide insights on session content, the client's discussions, and their professional perspective on the client's progress.

3. Depending on the client, goals, and progress, a consultant may suggest involving the client's coach and/or any coaching support staff. Coaches can help support the mental skills process, and communication with coaches allows them to understand what the client may need in order to be successful. The consultant is required to ask the client and parents/guardians before releasing any information to a coach and/or support staff. The client and parents/guardians can decide what information to release, and keep private.
4. The consultant is **required** to report any of the following concerns to the parent:
 - Belief of harm to self (or intent to harm self)
 - Belief of harming others (or intent to harm others)
 - Belief of mental health concerns
 - Belief of a safety concern
5. The consultant is **required by law** to break confidentiality and report any suspected emotional, physical, and/or sexual abuse to the relevant authorities.

Emergencies

1. The Mental Gain is not an emergency service. The Mental Gain aims to be available during normal working hours: 10 AM - 6 PM (EST), for non-emergency related communication.
 - a. If the client and parents/guardians have a time-sensitive concern, they may attempt to contact The Mental Gain, however, The Mental Gain does not guarantee an immediate response.
 - b. In the case of an emergency outside of a session, the client or parents/guardians should contact the appropriate authorities (911, crisis hotline, ER, mental health provider, etc).
2. The Mental Gain provides education in mental skills and strategies; however, participation in sports or the application of these skills carries an inherent risk of injury. The Mental Gain and its consultants are not responsible or liable for any physical injuries that may occur during or after participation in sessions.
3. In the case of an emergency during a session, the consultant will contact the appropriate emergency services and the parents/guardians immediately.

Parent/Guardian #1

Full Name - _____ Cell Phone - _____

Home Address - _____

Email - _____

Parent/Guardian #2

Full Name - _____ Cell Phone - _____

Home Address - _____

Email - _____

4. The consultant will assign work to clients outside of sessions, and therefore may need to send activities and reminders to the client. In addition, if a client is late to a meeting, the consultant may contact the client directly if the parents/guardians is not with the client at the moment.
5. Clients may reach out directly to consultants to: schedule their sessions, give mental skills updates, or ask mental skills questions. The consultant is permitted to respond, and will not contact the client for any other reasons than stated above. It is not required for the parents/guardians and/or the client to provide contact information, although it is recommended.

Client Contact information (not required, but recommended)

Client Name - _____ Cell Phone - _____

Email - _____

The Mental Gain Contact Information



TheMentalGain.com



[@The.Mental.Gain](https://www.instagram.com/The.Mental.Gain)



TheMentalGain@gmail.com



319.325.9499

Agreement

As the parent/guardian, I, _____ (**parent printed name**), have read
“The Mental Gain - Informed Consent (Minor)”, and agree to all sections. I, therefore, consent
for my child, _____ (**child printed name**), to receive sport mental
performance consulting services from The Mental Gain, under these legal agreements.

Parent/Guardian Signature _____ **Date** _____

Client Signature _____ **Date** _____

****Please return a copy of the full consent form (not just the signature pages) to your consultant.****

